

Dispute Chamber

Decision on the merits 61/2025 of March 25, 2025

File numbers: DOS-2023-03455 and DOS-2023-03186

Subject: complaint regarding the installation of a geolocation system in a company vehicle.

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, sole presiding chair;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "WOG"¹;

Considering the internal rules of procedure, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant"

The respondent:

Y NV, hereinafter "the respondent"

1 The DPA reminds that the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (WOG), and the new internal rules of procedure of the DPA, entered into force on June 1, 2024. The new provisions apply to complaints, mediation files, requests, inspections, and procedures for the Dispute Chamber that commence from this date. The new WOG is available via this link: <https://www.ejustice.just.fgov.be/cgi/loi/changeIg.pl?language=nl&la=N&cn=2017120311&table;name=wet>, and the internal rules of procedure via this link: . Files initiated before June 1, 2024, of which this file is a part, are subject to the provisions of the WOG and the internal rules of procedure as they existed before this date.

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I. Facts and procedure

1. The complainant submits a complaint to the Data Protection Authority against the respondent, dated July 26, 2023. The Dispute Chamber notes that there is a prior complaint from the same complainant, concerning the same facts and against the same respondent. Given the similarity of this prior complaint with the complaint addressed in this decision, and since the prior complaint contained the same initial documents that the respondent also received through the second complaint, the Dispute Chamber has decided to join the prior complaint with this complaint.

2. Given that they have the same content, the present decision rules on the two complaints submitted to the Data Protection Authority. The joined files bear the reference numbers DOS-2023-03455 and DOS-2023-03186.

3. The subject of the complaint concerns the alleged unlawful installation of a geolocation system in the complainant's company vehicle. The complainant, employed by the respondent as an employee, was the main driver of a company vehicle that was also used as a private vehicle. The complainant objects to the fact that the respondent installed a geolocation system in his vehicle, without this being mentioned in his employment contract, and without his consent. The complainant also argues that it was impossible for him to turn off the device outside of working hours or during vacations.

4. On September 11, 2023, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 WOG and is forwarded to the Dispute Chamber based on Article 62, § 1 WOG.

5. On October 3, 2023, the Dispute Chamber decides based on Article 95, § 1, 1° and Article 98 WOG that the file is ready for substantive treatment.

6. On October 27, 2023, the parties involved are notified by registered mail of the provisions as stated in Article 95, § 2 WOG, as well as those in Article 98 WOG. In that notification, the Dispute Chamber

raised the possibility that the respondent acted in violation of:

- The general principles regarding the processing of personal data, namely the principles of lawfulness, fairness, and transparency from Article 5.1 a) GDPR, the principle of purpose limitation from Article 5.1 b) GDPR, and the principle of data minimization from Article 5.1 c) GDPR concerning the alleged unlawful processing of personal data resulting from the installation of a geolocation system in the complainant's company vehicle.

- Article 6.1 GDPR regarding the legal basis underlying the alleged unlawful data processing.

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Article 12.1, 13, and 14 GDPR regarding the information provided to the complainant about the scope and nature of the data processing in question.

7.

They are also informed under Article 99 WOG of the deadlines for submitting their defenses. The deadline for receipt of the defendant's statement of defense was set for December 8, 2023, for the complainant's reply on December 29, 2023, and for the defendant's rejoinder on January 19, 2024.

8.

On November 6, 2023, the defendant expressly accepts that all communication regarding the case will take place electronically and requests a copy of the file (Article 95, § 2, 3° WOG), which was provided to him on November 9, 2023.

9.

On December 8, 2023, the Chamber of Disputes receives a statement of defense from the defendant. In it, the defendant primarily argues that all principles of the GDPR have been complied with.

Specifically, it argues that the principles of lawfulness and purpose limitation in accordance with Articles 5.1 b) and 6.1 GDPR have been adhered to. Additionally, the defendant contends that the principles of fairness and proportionality in accordance with Article 5.1 a) GDPR, as well as the principles of transparency and information in accordance with Articles 5.1 a), 12.1, 13, and 14 GDPR, have also been met. The defendant further claims that the processing in this case complied with the principle of data minimization as stated in Article 5.1 c) GDPR. Furthermore, the defendant asserts that on June 15, 2023, the planned implementation of the geolocation system was discussed with the employees involved during a company meeting. Subsequently, a written staff communication, containing the geolocation policy, was handed out to the employees present. According to the defendant, everyone would have received this document by June 16, 2023, at the latest.

10.

On December 21, 2023, the Chamber of Disputes receives the complainant's reply. The Chamber of Disputes forwarded this reply to the defendant on January 11, 2024. In his reply, the complainant disputes the existence of the meeting on June 15, 2023, during which the planned implementation of the geolocation system and the related policy were discussed with the employees involved. The complainant argues that the geolocation policy, which was forwarded to him on June 16, 2023, constituted the first notification. The complainant also presents reasons that he believes demonstrate that the geolocation monitoring in this case is unlawful in light of the position of the Data Protection Authority as stated on its website.² Furthermore, the complainant argues that the geolocation system records data outside of working hours that can be accessed by the defendant, and that the system cannot be turned off independently as it is directly connected to the car's battery.

²<https://www.gegevensbeschermingsautoriteit.be/burger/thema-s/privacy-op-de-werkplek/toezicht-van-de-werkgever/geolocalisatie>

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11.

On January 19, 2024, the Chamber of Disputes receives the defendant's rejoinder. In it, the defendant wishes to emphasize that the meeting on June 15, 2023, indeed took place, but that the complainant was absent.

12.

On January 11, 2024, the defendant indicates a desire to exercise the right to be heard, in accordance

with Article 98 WOG.

13.

On December 13, 2024, the parties are informed that the hearing will take place on January 27, 2025.

14.

On January 27, 2025, the defendant is heard by the Chamber of Disputes. The complainant was not present at that hearing.

15.

On January 29, 2025, the minutes of the hearing are submitted to the parties.

16.

The Chamber of Disputes receives no comments regarding the minutes.

II. Reasoning

II.1. Regarding the legal basis underlying the alleged unlawful data processing

17.

The Chamber of Disputes reminds that pursuant to Article 5.1 a) GDPR, personal data must be processed lawfully, fairly, and transparently. More specifically, the Chamber of Disputes points to the specification of the principle of lawfulness as set out in Article 6.1 GDPR, which stipulates that any processing of personal data must be based on a legal basis. This means that a data controller may not start or continue processing without relying on one of the conditions listed in Article 6.1 GDPR.

18.

In light of the conclusion and the minutes of the hearing, the Chamber of Disputes finds that the defendant expressly invokes its legitimate interest, in accordance with Article 6.1 f) GDPR, to justify the installation of the geolocation system and the associated processing activities.

19.

As explained by the Court of Justice in its case law³, three cumulative conditions must be met for a data controller to lawfully invoke Article 6.1 f) GDPR. Each of these conditions will be addressed below, applied to the processing in this case.

3 CJEU, May 4, 2017, C-13/16, Valsts policijas Rīgas reģiona pārvaldes Kārtības policijas pārvalde v. Rīgas pašvaldības SIA „Rīgas satiksme” (ECLI:EU:C:2017:336), para. 28 (“Rīgas Judgment”).

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II.1.1. Justified Interest

20. Firstly, the data controller must pursue a current, justified interest. The respondent indicates in its conclusion that the data processing in this case is fundamentally important for optimizing the management of its employees' professional travels, in order to strengthen its competitive position. The main activity of the respondent would indeed consist of the services of its technicians who travel daily to install, maintain, and repair devices at customers' locations.

21.

The Dispute Chamber finds, based on the geolocation policy of the respondent, that the stated purposes of the processing consisted of:

- obtaining a simplification of registration and administration for invoicing and time tracking for post-calculation;
- insight into routes;
- insight into departure and arrival times;
- reducing (fuel) costs;
- a comprehensive accounting of hours;
- evidence for clients;
- an increase in safety;
- and reducing communication costs.

The Dispute Chamber believes that these objectives for the use of the geolocation system indeed correspond with the aforementioned justified interest.

22.

However, the Dispute Chamber is of the opinion that the facts show that the justified interest of the respondent primarily consisted of monitoring the work performance and hours worked by its

employees. It derives this primarily from the fact that the respondent does not outline its processes, which should reflect how it uses the collected personal data to optimize the management of professional travels. Moreover, the respondent admits that monitoring its employees was a primary goal of the processing in this case.⁴ There may thus be a violation of the principle of purpose limitation, which the Dispute Chamber further elaborates on in section II.2.

23.

Aside from this, the Dispute Chamber concludes that the respondent in any case had a justified interest to justify the processing in this case, whether to monitor the performance of its employees or to pursue logistical and economic efficiency. According to the position of the Data Protection Authority, as stated on its website⁵, both can be considered legitimate purposes for installing a geolocation system in employees' vehicles.

II.1.2. Necessity

24.

In addition to the existence of a justified interest, the data controller must also demonstrate the necessity of the processing for that interest before being able to invoke Article 6.1. f) GDPR. This means in particular that the question must be asked whether the same result can be achieved by other means without processing personal data, or with a less intrusive processing for the data subjects.

25.

As listed in its geolocation policy, the processed data includes, among other things, the location of the vehicle, the kilometers driven, the start and end times, the duration of the trip, and the stop times. The Dispute Chamber considers the processed data necessary for the justified interests of the respondent, namely to conduct a check on its employees and/or to efficiently manage work-related travels.

26.

The respondent further states that the registration times of the geolocation system to which it has access correspond with the working hours of its employees. Specifically, this means that only the data recorded on weekdays between 8:30 AM and 5:00 PM could be accessed by it. Regarding the reading of the collected data by the respondent, the Dispute Chamber therefore finds that the respondent could only consult the data that was collected during actual working hours, which seems necessary for its justified interests.

27.

During the hearing that took place on January 27, 2025, the Dispute Chamber points out the discrepancy between the working hours entered in the geolocation system and the working hours as stated in the complainant's employment contract, namely flexible hours from 9:00 AM to 6:00 PM. The respondent argues that the working hours as recorded by the processor in the geolocation system better correspond to reality than the hours to be worked as mentioned in the employment contract.⁶ The Dispute Chamber notes that this justification again points to a monitoring mechanism, namely the oversight of compliance with the internal work arrangements made with its employees.

⁴ See minutes of the hearing of January 27, 2025, p. 2

⁵ <https://www.gegevensbeschermingsautoriteit.be/burger/thema-s/privacy-op-de-werkplek/toezicht-van-de-werkgever/geolocalisatie>

⁶ See minutes of the hearing of January 27, 2025, p. 3

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28.

From the preceding, the Dispute Chamber concludes that the processor offering the geolocation system has continuously recorded the data, but that only the data collected on weekdays from 8:30 AM to 5:00 PM were forwarded to the respondent.

29.

In this regard, the Dispute Chamber notes that it considers continuous data recording by the processor to be disproportionate. Although more regular monitoring may be justified in this case, given that such monitoring is directly related to the nature of the tasks to be performed by the employee (field technician), the Dispute Chamber finds a permanent registration of (location) data by the processor to be excessive. The Dispute Chamber emphasizes that the system must be configured in such a way

that it can be deactivated when the employee uses their vehicle outside of working hours. This means not only that the data controller must not have access to that data, but also that the processor must not record (location) data for periods outside of regular working hours, such as during weekends, holidays, or sick days. However, since the Dispute Chamber does not have detailed insight into the data recording as performed by the processor, it cannot establish any infringement on this point in this case. 30. Finally, the Dispute Chamber notes that the complainant contests the necessity of the geolocation system in their reply. The complainant argues that for every on-site service, the customer must sign a work order that specifies the services provided and the hours worked. According to the complainant, these work orders should be sufficient to achieve the respondent's objectives. The respondent indicates that a geolocation system is indispensable, as there is a suspicion that these work orders are not filled out by the customer but are completed later by the employee themselves. The Dispute Chamber emphasizes that a mere suspicion of fraud, without providing any evidence for it, is insufficient to demonstrate the necessity of the geolocation system. Nevertheless, the Dispute Chamber is of the opinion that the geolocation system is a necessary tool to safeguard the interests of the respondent. A geolocation system provides the respondent with the ability to verify whether their employees were actually present at the workplace or with the customer during the agreed hours. Additionally, the respondent can identify unjustifiably long travel times or inefficient routes, which can contribute to cost savings. The Dispute Chamber finds these objectives difficult to achieve with handwritten work orders.

31.

In light of the above, the Dispute Chamber is of the opinion that the processing in this case can indeed be seen as necessary for the legitimate interest of the respondent.

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II.1.3. Balancing Test

32.

Finally, it is required that the interests or fundamental freedoms and rights of the data subjects do not prevail over the legitimate interest of the data controller. In order to rely on Article 6.1.f) GDPR, the data controller must, in other words, conduct a balancing of interests and demonstrate that its own interests outweigh the interests or fundamental rights and freedoms of the data subjects.

33. Given the nature of the processed personal data and the time limitation of the processing as explained in paragraphs 25 to 27 of this decision, the Dispute Chamber must conclude that its impact on the data subjects remains rather limited. The Dispute Chamber finds that the respondent could only read data that is necessary for the priority objectives of the processing, and this only during actual working hours.

34. In light of the above, the Dispute Chamber is of the opinion that the respondent has made a sufficient balancing of interests. It is therefore its conclusion that, given the limited impact of the processing on the data subjects, the interests or fundamental freedoms and rights of the data subjects do not outweigh the legitimate interest of the respondent.

35. The Dispute Chamber thus concludes that the respondent could lawfully invoke Article 6.1.f) GDPR.

II.2. Regarding the principle of purpose limitation

36. The Dispute Chamber reminds that, in accordance with the principle of purpose limitation from Article 5.1.b) GDPR, all personal data must be collected for specific, explicitly defined, and legitimate purposes. Such personal data may not be further processed in a manner incompatible with those purposes.

37. In this regard, the Dispute Chamber notes that the respondent explicitly describes the purposes of the processing in its geolocation policy communicated to its employees on June 16, 2023. As previously stated, the Dispute Chamber notes that the respondent does not outline its processes in any way, which should reflect how it uses the collected personal data to optimize the management of professional movements. Furthermore, the Dispute Chamber finds that the respondent also does not clarify how

⁷ See also paragraph 21

the collected personal data is used to increase the safety of its employees or to reduce communication costs, as stated in its geolocation policy.

38. However, based on the facts presented, the Dispute Chamber finds that the respondent primarily used the collected personal data to conduct a check on the hours worked by its employees. The respondent also admits that this was a primary purpose of the processing in this case. Although the geolocation policy presents "obtaining a comprehensive accounting of hours" as a goal, that same policy explicitly states that monitoring is not the objective. From this, the Dispute Chamber concludes that the wording "obtaining a comprehensive accounting of hours" refers to obtaining an administrative system that ensures that the hours worked are recorded correctly. The Dispute Chamber concludes that the respondent did not present the monitoring of the hours worked by its employees as a goal prior to the processing, but did use the collected personal data for that purpose. For this reason, the Dispute Chamber concludes that the respondent has violated the principle of purpose limitation in accordance with Article 5.1 b) GDPR.

39. Finally, the Dispute Chamber notes that the complainant claims to have received comments from the respondent regarding the speed driven with his vehicle, without providing evidence for this. The respondent disputes this claim by stating that it has no interest in monitoring the speed driven, as its employees are responsible for traffic fines in the event of speeding violations. Furthermore, the possibility of automatic notification in the event of excessive speed would have been deactivated in the geolocation system. Given the limited information available to the Dispute Chamber, it assumes that the respondent did not collect personal data with the aim of monitoring the speed driven by its employees.

II.3. Regarding the principle of data minimization

40. The Dispute Chamber reminds that, in accordance with the principle of data minimization from Article 5.1 c) GDPR, personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed.

41. In this regard, the Dispute Chamber rules that the data processed by the respondent is limited to what is necessary for the purposes for which it was processed, considering their nature.

42. As further explained in paragraph 29, the Dispute Chamber reiterates that it considers continuous data recording by the processor to be disproportionate. Moreover, it finds this contrary to the principle of data minimization. The fact that a data controller only has access to the data necessary for the intended purpose does not detract from this. However, since the Dispute Chamber does not have direct insight into the actual recording as carried out by the processor, it cannot draw a definitive conclusion as to whether this is indeed in violation of the principle of data minimization and therefore cannot establish a breach.

43. The Dispute Chamber notes that it was impossible for the complainant to deactivate the geolocation system manually and in a conventional manner. The Dispute Chamber is of the opinion that it suffices for the data controller to deactivate the geolocation system during periods outside working hours, so that no (location) data is recorded. In this regard, the Dispute Chamber indicates that it considers it a best practice for an employee to be able to activate and deactivate the geolocation system themselves, in light of the principle of data minimization. This would indeed reduce the risk of personal data being recorded and processed outside of actual working hours. This is particularly relevant when an employee has flexible hours, which can vary daily, as is the case here.

44. The Dispute Chamber notes that the respondent instructed the processor to temporarily put the system on hold after it became aware of the complaint that was filed. Additionally, the Dispute Chamber appreciates the respondent's initiative to consider implementing an application during this period, which would allow employees to deactivate the geolocation system when using the company vehicle outside of working hours.

II.4. Regarding the principle of transparency

45. The Dispute Chamber reminds that Article 12.1 GDPR and Articles 13 and 14 GDPR obligate the data controller to provide data subjects with concise, transparent, and understandable information regarding the processing. The data subjects must also receive this information in an easily accessible form and in clear and simple language. This obligation constitutes a specification of the general

transparency obligation of Article 5.1 a) GDPR.

46. The Dispute Chamber reminds that an essential aspect of the principle of transparency is the assumption that the data subject must be able to determine in advance what the scope and consequences of the processing are, so as not to be surprised later about how their personal data has been used. The information must be concrete and reliable, not formulated in an abstract or ambiguous manner, and not susceptible to different interpretations. In particular

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the purposes and legal grounds for the processing of personal data must be clear.

47.

With regard to the processing purposes, the Dispute Chamber notes that the respondent uses ambiguous language in its geolocation policy, first stating that it aims to achieve “a comprehensive accountability of hours” with the introduction of the geolocation system, but then indicating that although “monitoring with this device is indeed possible; monitoring is however not the goal.” This leaves the complainant unclear as to whether he can expect monitoring of the hours worked. Given that labor monitoring was one of the primary processing purposes of the geolocation oversight, the Dispute Chamber concludes that the respondent fails to fulfill its transparency obligation and infringes Article 12.1 GDPR in conjunction with Article 13.1(c) GDPR.

48. Furthermore, the Dispute Chamber finds that the geolocation policy does not sufficiently detail the precise legal ground on which the data processing is based. Although the title “Why Track-and-trace?” of the geolocation policy contains some relevant elements, the Dispute Chamber is of the opinion that the respondent does not adequately explain that the introduction of the geolocation system is based on Article 6.1(f) GDPR, and what its legitimate interests are in this regard. Thus, the Dispute Chamber concludes that the respondent infringes Article 13.1(c) and (d), Article 14.1(c), and Article 14.2(b) GDPR.

49. The Dispute Chamber also notes that the respondent lists the categories of personal data it will process in a non-exhaustive manner, as the list ends with “et cetera.” The Dispute Chamber believes that an incomplete enumeration of the personal data to be processed does not enable the complainant to assess the impact that the processing will have on him. The Dispute Chamber rules that this constitutes an infringement of Article 12.1 GDPR in conjunction with Article 14.1(d) GDPR.

50. The Dispute Chamber finds that the geolocation policy does not mention the retention periods for the personal data concerned, nor the criteria for determining these. The Dispute Chamber is of the opinion that this constitutes a violation of Article 13.2(a) and Article 14.2(a) GDPR.

51.

Finally, the Dispute Chamber emphasizes that it considers it best practice for a data controller to enter into a separate agreement with its employees, or to add an annex to the employment contract, which includes the requirements of Articles 13 and 14 GDPR, in order to comply with the transparency obligation pursuant to Article 12.1 GDPR.